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File No: EXP202202011

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against FORKMERGE S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202202011

IMI Reference: A56ID 368231 Case Register: 502847

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the German data protection authority of Bremen on November 26, 2021. The complaint is directed against FORKMERGE S.L. (hereinafter FORKMERGE) with NIF B57703761. The reasons on which the complaint is based are as follows:

The complainant states that when entering their name into the search engine (**URL.1), two articles appear in which their name and image were included. After contacting the responsible parties for the publications and having sent them two complaints, their name has been removed from the articles. However, the search engine continues to index the news when the name and surname of the data subject are entered.

The documentation attached to the complaint is as follows:

- Letter from the German authority of Bremen, dated January 24, 2022, confirming the receipt of their letter, and reminding the complainant if they had previously contacted the website operator and the newspaper owner.

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- Response letter sent by the complainant to the Data Protection Authority of Bremen dated February 4, 2022, in which the complainant states that they had already contacted Newstral (FORKMERGE) on June 23, 2021, and September 25, 2021, to have their name removed from their databases. They also state that they contacted the newspaper and that their data had already been deleted.

- Printout of an email dated June 23, 2021, at 10:15, sent from support@newstral.com to an email address of the complainant, with the following content: "This is an automatic response: Thank you for your message. We will get back to you soon." (unofficial translation: "Este correo es una respuesta automática. Gracias por su mensaje. Contestaremos lo más pronto posible")

This email is sent in response to a previous email sent that same day by the complainant, with the following content:

"On June 23, 2021 at 10:14 AM (...) wrote:

Guten Tag,

bitte entfernen Sie meinen Namen: "A.A.A." aus Ihrer Datenbank bzw. Ihren Treffern.

Die Zeitungen habe ich bereits kontaktiert und wird in den von Ihnen verlinkten Artikeln mein Name bereits nicht veröffentlicht. Hintergrund ist u.a. eine Auskunftssperre für meine Familie und mich, die im Zusammenhang mit dem Beruf (...) steht.

Freundliche Grüße

A.A.A."

[Unofficial translation: "On June 23, 2021 at 10:14 AM (...) wrote: Good day, please remove my name: "A.A.A." from your database or your hits. I have already contacted the newspapers and my name is not published in the articles linked by you. The background is, among other things, an information block for my family and me, which is related to the profession (...).

Best regards.

A.A.A."]

- Printout of an email dated September 25, 2021, at 9:17 AM, sent from support@newstral.com to an email address of the complainant. This email contains an automatic response with the following content: "This is an automatic response: Thank you for your message. We will get back to you soon." (unofficial translation: "Este correo es una respuesta automática. Gracias por su mensaje.

Contestaremos lo más pronto posible").

This email is sent in response to a previous email sent by the complainant that same day, with the following content:

"On Sep 25, 2021, at 9:17 AM (...) wrote:

Good day, please remove my name: "A.A.A." from your database or your hits.

I have already contacted the newspapers and my name is already not published in the articles linked by you. Background is among other things an information block for my

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family and me, which stands in connection with the occupation of (...). I already wrote to you about this in June, but unfortunately without success.

Kind regards

A.A.A."]

[Unofficial translation: "On September 25, 2021, at 9:17 (...) wrote:

"Good day, please remove my name: 'A.A.A.' from your database or your results.

I have already contacted the newspapers and my name is no longer published in the articles linked by you. The background is, among other things, a block of information for my family and for me, which is related to the occupation of (...).

I already wrote to you about this in June, but unfortunately without success.

Kind regards

A.A.A."]

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on February 15, 2022, and was registered with the Spanish Agency for Data Protection (AEPD) on February 16, 2022. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that FORKMERGE has its registered office and sole establishment in Spain.

According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, the German data protection authority of Bremen acts as the interested authority, in accordance with the provisions of Article 4.22) letter c) of the GDPR, as it is the supervisory authority to which the complaint has been submitted, without other supervisory authorities having declared themselves interested in the present procedure.

THIRD: On June 6, 2022, in accordance with the then applicable Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in

accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following details:

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On October 11, 2022, a search was conducted on the website <https://newstral.com/> with the following results:

1. By entering the name and surname of the claimant in the search bar of the website <https://newstral.com/> and performing the search, two news articles appeared as a result of this search.
2. Upon accessing the two news articles, it was observed that the name and surname of the claimant do not appear within the text of the news.
3. In each of the two news articles, a photograph of a group of people appears.

On October 26, 2022, a written response to a request for information was received at the AEPD, submitted on behalf of FORKMERGE, in which the following information was provided, among others:

1. A statement that “I want to assure A.A.A. that we have deleted all of your data from our server and from our databases of Newstral.com immediately after receiving the notification,” and they indicate that this was done on October 11, 2022.
2. A statement that “For the URLs of Newstral pages that contained the name, we have requested their removal from the Google search engine. As of today, we do not find any results on Google when we search for ‘A.A.A. Newstral.com.’”
3. A statement that on October 21, 2022, a response was sent to the claimant through their complaints system, in which they apologize and explain that their data has been deleted. A transcript of the communication sent to the claimant in German is provided.
4. Regarding the reasons that may have led to this incident, they indicate that newstral.com is an aggregator of news and articles that appear in other online media and that “To improve the relevance of that selection of news, our system identifies names in the text of the article. This way, we can offer our readers a service that ensures they do not miss news that mentions names of interest. As a general rule, we have to trust that authors carefully examine whether publishing a name is of public interest or not.”
5. Regarding the reasons why this specific claim was not addressed at the time, they declare the following:
“In the case (...) your name appeared in articles from a newspaper and was indexed by our systems. Your name appeared on our pages providing context to the article's headline. Later, the newspaper removed your name from the article. And our systems did not detect this change. We index an article only once. (...) you did the right thing and tried to contact us to have your name removed. For that, you used a form on our pages that is there on purpose. Unfortunately, a lot of spam comes through this form, and unfortunately, we missed it. We are very sorry. Other people with similar issues who contacted us through other channels (emails, comments below the legal notice, ...) did not experience the same. We reacted within a few days.”
6. Regarding the measures taken to prevent similar incidents from occurring, they declare that “We are reviewing how to reduce the amount of spam that comes through the complaints form. If in the next two weeks (until November 4) we cannot improve the situation, we will remove the form and offer contact via email. There, the spam filters are superior.”

On March 23, 2023, a search was conducted on the website <https://newstral.com/> obtaining the following results:

1. By entering the name and surname of the claimant in the search bar of the website <https://newstral.com/> and performing the search, no results appear and the message “Leider nichts gefunden” [unofficial translation: “Unfortunately, nothing was found”] is displayed.

Business volume or activity: According to the search conducted in the Monitoriza service of Axesor (<https://monitoriza.axesor.es/>) on March 23, 2023, it is noted that the investigated entity is a self-employed type company.

FIFTH: On April 5 and 20, 2023, FORKMERGE was requested to provide:

- A screenshot (or similar) showing the date of deletion of the claimant's personal data from their systems.
- A screenshot or copy of the email (or similar) sent to the claimant indicating the date of sending, sender, and recipient.

SIXTH: On April 20 and 26, 2023, two documents were registered at this Agency providing the required documentation.

SEVENTH: On May 24, 2023, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on May 29, 2023, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to raise relevant and motivated objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the deadline set for this purpose, the interested supervisory authorities did not present relevant and motivated objections in this regard, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

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Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, given that FORKMERGE collects and retains, among others, the following personal data of natural persons: name, surname, and images, among other processing activities.

FORKMERGE carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, this is a cross-border processing, as FORKMERGE is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), regarding the competence of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or the only establishment of the controller or processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, FORKMERGE has its sole establishment in Spain, so the Spanish Agency for Data Protection is competent to act as the lead supervisory

authority.

For its part, Article 17 of the GDPR recognizes the right of data subjects to have their personal data erased.

III

Right to erasure (right to be forgotten)

Article 17 of the GDPR establishes:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the personal data have been made public and the controller is obliged, pursuant to paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.”

In the present case, the complainant had requested FORKMERGE on two occasions (June 23 and September 25, 2022) to erase their personal data from the databases or results, which were not addressed. The complainant received an acknowledgment of receipt of the emails sent, in which it was communicated that the email had been received and that a response would be received in English, but such response was never received.

Furthermore, by diligence dated October 11, 2022, included in this file, it has been confirmed that, when conducting a search in the search bar of the website <https://newstral.com/> using the name of the complainant, two results appeared.

Only after the request for information sent from this Agency did FORKMERGE proceed to erase the personal data of the complainant from the databases or results, and communicated this to the complainant on October 21, 2022.

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Thus, it has been evidenced through the writings of the entity dated April 20 and 25, 2023, in which a screenshot of said email has been provided, as well as the results of the search by the name of the claimant party, where it can be observed that no results appear and the message “Leider nichts gefunden” [unofficial translation: “Unfortunately, nothing was found”] is displayed.

Therefore, in accordance with the evidence available in this agreement to initiate sanctioning proceedings, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to FORKMERGE for violation of Article 17 of the GDPR.

IV

Classification and qualification of the infringement of Article 17 of the GDPR

If confirmed, the aforementioned infringement of Article 17 could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 72.1.k) "very serious infringements" of the LOPDGDD provides the following:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year statute of limitations for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679."

V

Proposal for sanction

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the agreement to initiate sanctioning proceedings, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 17 of the GDPR, allows for an initial sanction of €2,000 (two thousand euros).

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V

Imposition of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, without prejudice to what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

Furthermore, the measures that may be adopted in the resolution that concludes the procedure, in relation to the exercise of rights, would apply in all countries of the European Union where FORKMERGE operates.

It is warned that failure to comply with the requirements of this agency could be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct could lead to the opening of a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURES against FORKMERGE S.L., with NIF B57703761, for the alleged infringement of Article 17 of the GDPR, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may

be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the documentation from the IMI that has led to the prior investigative actions, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of this sanctioning procedure and the documentation from the IMI regarding the draft decision.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €2,000.00, without prejudice to what results from the instruction.

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FIFTH: NOTIFY this agreement to FORKMERGE S.L., with NIF B57703761, granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 1,600.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 1,200.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), it must make the payment by depositing it into account no. IBAN: ES00-0000-0000-6302-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the file that appears in the heading of this document and the reason for the reduction of the amount to which it is adhering.

Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On July 4, 2023, the party being claimed has proceeded to pay the sanction in the amount of 1,200 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, 12/12

The procedure may be resolved with the imposition of the applicable sanction.

2. When the sanction is solely of a pecuniary nature, or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202202011, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to FORKMERGE S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article

46.1 of the aforementioned Law.

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